

26NNCV05524 26NNCV05524

County: los-angeles

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Department: A

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Case Number: 26NNCV05524 Hearing Date: August 19, 2026 Dept: A

TENTATIVE RULING

ADVANCED TO AUGUST 19, 2026

ORIGINALLY SCHEDULED AUGUST 21, 2026

DEMURRER

Los

Angeles Superior Court Case # 26NNCV05524

MP: Defendants Gevorg Khalatyan and Ani Kababchian

RP: Plaintiff 6724 Lankershim LLC

This matter was set for hearing on August 21, 2026. Upon stipulation, at the August 19, 2026 Status Conference the Court orally advised the parties of the Court's tentative, each submitted and the Court adopted its tentative as follows:

ALLEGATIONS:

On July

17, 2026, 6724 Lankershim LLC ("Plaintiff") filed an Unlawful Detainer

Complaint against Gevorg Khalatyan and Ani Kababchian ("Defendants") regarding

the premises located at 6755 Lankershim Blvd., North Hollywood, CA 91606. The parties entered into a written month-to-month

lease agreement. Plaintiff alleges that

Defendants were served with a 3-day notice to pay rent or quit on June 22, 2026, which expired on June 26, 2026.

Plaintiff seeks possession of the premises, costs incurred in the proceedings, past-due rent of \$34,925.60, forfeiture of the agreement, and damages at \$137 per day from July 1, 2026.

MOTION ON CALENDAR:

On August 5, 2026, Defendants filed a Demurrer to the Complaint. On August 7, 2026, Plaintiff filed an opposition.

LEGAL

STANDARD:

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (C.C.P. § 430.30(a); *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) A demurrer for sufficiency tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) The only issue involved in a demurrer hearing is whether the complaint states a cause of action. (*Id.*)

A demurrer

assumes the truth of all factual, material allegations properly pled in the challenged pleading. (*Blank, supra*, 39 Cal. 3d at p. 318.) No matter how unlikely or improbable, the plaintiff's allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604.) But this does not include contentions; deductions; conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial notice. (*Blank, supra*, 39 Cal. 3d at 318.)

Pursuant to C.C.P.

§§ 430.10(e) and (f), the party against whom a complaint has been filed may demur to the pleading on the grounds that the pleading does not state facts sufficient to constitute a cause of action, or that the pleading is uncertain, ambiguous and/or unintelligible. It is an abuse of discretion to sustain a demurrer without leave to amend if there is a reasonable probability that the

defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal. 4th 1074, 1082.)

MEET AND CONFER:

C.C.P. §§

430.41(a) and 435.5(a) require that the moving party meet and confer with the party who filed the pleading that is subject to the demurrer and/or motion to strike. However, this requirement does not apply to unlawful detainer actions. (C.C.P. § 430.41(d)(2).) As this is an unlawful detainer action, there is no meet and confer requirement for this motion.

ANALYSIS:

Defendants

demur to the Complaint, arguing: (1) the Notice fails to provide the name of the person to whom the rent payment shall be made; (2) the Complaint is not properly verified by Plaintiff's officer; and (3) the Complaint fails to properly allege the written agreement entered by the parties, fails to allege that the Notice was attached, and fails to verify the statements regarding rental assistance.

First, Defendants

argue that the Notice does not identify the name of the person to whom rental payment shall be made and is not signed by any individual.

C.C.P. §

1161(2) states in relevant part:

2.

When the tenant continues in possession, in person or by subtenant, without the permission of the landlord, or the successor in estate of the landlord, if applicable, after default in the payment of rent, pursuant to the lease or agreement under which the property is held, and three days' notice, excluding Saturdays and Sundays and other judicial holidays, in writing, requiring its payment, stating the amount that is due, the name, telephone number, and address of the person to whom the rent payment shall be made, and, if payment may be made personally, the usual days and hours that person will be available to receive the payment (provided that, if the address does not allow for personal delivery, then it shall be conclusively presumed that upon the

mailing of any rent or notice to the owner by the tenant to the name and address provided, the notice or rent is deemed received by the owner on the date posted, if the tenant can show proof of mailing to the name and address provided by the owner), or the number of an account in a financial institution into which the rental payment may be made, and the name and street address of the institution (provided that the institution is located within five miles of the rental property), or if an electronic funds transfer procedure has been previously established, that payment may be made pursuant to that procedure, or possession of the property, shall have been served upon the tenant and if there is a subtenant in actual occupation of the premises, also upon the subtenant. [...]

(C.C.P. § 1161(2) [emphasis added].)

The term “‘person’ as used in section 1161(2) includes a corporation as well as a natural person—an interpretation that is consistent with the purpose of the unlawful detainer statutes and supported by the specific language of section 1161 and its statutory and legislative context.” (City of Alameda v. Sheehan (2024) 105 Cal.App.5th 68, 80–81.)

A review of the Notice shows that it includes that payment shall be made to 6724 Lankershim LLC at 52 Pine Valley Drive, Rancho Mirage, CA 92270 with telephone number (310)801-5297. Thus, the Notice includes the name, telephone number, and address of the person (or entity) to whom the rent payments shall be made. As such, this will not be a ground to sustain the demurrer.

Second, Defendants argue that the Complaint is not verified by Plaintiff’s officer because the Complaint’s Verification is signed by Mona Oken who is an “AGENT of THE OWNER.”

The verification is signed by Mona Oken, as agent of the owner, expressly indicated on the form. Defendants’ argument that a corporate officer must sign is not supported by authority in the demurrer. Plaintiff’s Opposition establishes the verification is proper for unlawful detainer actions, and Courts routinely accept agent

verifications in UD matters.

As

to the agency verification question, that is governed by CCP section 1161. That statute requires that a complaint that must be verified (like this one) must be verified by the plaintiff unless the plaintiff is out of the county, in which case it can be verified by counsel. Where the plaintiff is a corporation, then it must be verified by an "officer." The statute does not expressly state what happens when the plaintiff is an LLC, which stands for "Limited Liability Company." An LLC typically has "Members" and "Managers." They often have no "officers." Under these circumstances, and given that an LLC may obviously be a plaintiff, the court believes that an agent is sufficient, at least where the agent has knowledge of the facts alleged in the complaint. The court believes that this is adequate for the purpose given that the agent alleges both authority to sign and knowledge as to the truth of the allegations. The clause in section 446 providing for verification of a pleading by an officer when the corporation is a party is not exclusive. It is permissive only, and does not exclude an attorney or other person from making the verification in a proper case. (H. G. Bittleston Law & Collection Agency v. Howard (1916) 172 Cal. 357, 362.)

The

Defendants cite to League of Women Voters v. Eu (1992) Cal. App. 4th 649, 656). This case is not helpful to

Defendants. In League of Women Voters

an attorney verified the complaint based on information and belief. The Court of Appeal confirmed that in certain instances counsel may verify a Complaint on behalf of their client. In this instance a business agent signed on behalf of the Limited Liability Company.

Third,

Defendants argue that the Complaint is ambiguous because it fails to allege the lease agreement, including when the agreement was entered into. The Complaint's section 6 includes facts about the lease agreement. It leaves the "On or about (date)" portion blank in subsection 6(a). The Complaint indicates there was a "written" lease, but not date was indicated nor was a copy of the lease attached to the Complaint. Defendants argue that without knowing the terms of the lease agreement, it cannot ascertain whether the Notice's request for rent dating back to December 1, 2025 is proper. The Court agrees.

The

demurrer will be sustained on this basis.

Next, the

Complaint's allegations do not need to check off subsection 9(e) (alleging that the Notice is attached as Exhibit 2) because that subsection applies to residential properties, whereas this action involves a commercial property. Nevertheless, there appears to be some issues with labeling as Plaintiff checks off subsection 10(d) that the proof of service to the Notice is attached and labeled as Exhibit 3, but the Complaint includes three Proofs of Service and the Notice, none of which are designated with Exhibit numbers. Upon amendment, Plaintiff should properly label the Complaint's attachments.

Defendants

also argue that Plaintiff failed to verify the statements regarding rental assistance in the Complaint's section 11, which is "required in all actions based on nonpayment of rent or any other financial obligation." (Compl., § 11.) This argument is unpersuasive. CCP §871.10 regarding such relief appears to apply to rental debt as defined in CCP §1179.02. That section was repealed October 1, 2025. The rental alleged to be in arrears in this matter does not appear to have been COVID-19 Rental Debt. The demurrer is not sustained on this basis.

For these

reasons, the demurrer to the complaint is sustained with leave to amend.

RULING:

In the

event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in hard copy and entered into the court's records.

ORDER

Defendants

Gevorg Khalatyan and Ani Kababchian's Demurrer came on regularly for hearing on

August 21, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

the

DEMURRER TO THE COMPLAINT IS SUSTAINED WITH 10 DAYS' LEAVE TO AMEND.

CLERK TO

GIVE NOTICE.

IT IS SO

ORDERED.